

Court: ☐ Municipal ☐ District Colorado City/Town or County: _____ Court Mailing Address.: _____	<i>This box is for court use only.</i>
Parties: Plaintiff: The People of the City/Town of _____ v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>	
Filed by: Name: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u> Mailing Address.: <u>1188 Upper Notch Crossing Road, Apartment 14B</u> Phone <u>(719) 555-0199 ext. 4417</u> Fax: _____ Email: _____ Bar Number: _____ (For lawyers)	Case Number: <u>2014M0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____
Petition to Seal Municipal Conviction Records	

1. The Petitioner is: (check one only)
 - ☐ the Defendant and the primary subject of the criminal conviction record.
 - ☐ the designated representative of the Defendant, by power of attorney or notarized authorization.
 - ☐ the parent of the Defendant, if Defendant is under legal disability.
 - ☐ the appointed legal representative of the Defendant, if Defendant is under legal disability.

2. **I Information about the Petitioner:** Date of Birth: 1961-12-31
 If different from the "filed by" section above, also give the Petitioner's:
 Mailing Address: _____
 City: _____ State: _____ Zip Code: _____
 Main Phone #: _____ Work Phone #: _____

3. The criminal conviction records are in the custody of the following agencies:
 - ☐ Municipal Courts Case Number: _____
 Mailing Address: _____
 - ☐ Sheriff's Department
 Mailing Address: _____
 - ☐ District Attorney
 Mailing Address: _____
 - ☐ City Attorney
 Mailing Address: _____

☐ Law Enforcement (name) _____ Case Number: _____
Mailing Address: _____

☒ Colorado Bureau of Investigation (CBI) (Required)
ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215

☐ Other: _____
Mailing Address: _____

4. Information about the criminal conviction to seal is as follows:

Identify offense(s) convicted of in the case requesting to seal:

☐ Municipal Violation(s) of _____

Date Sentenced: _____

Probation/Parole Supervision Termination Date: _____

5. Was this case appealed? ☐ Yes ☐ No If yes, please provide the following information:

Appeal Case Number: _____

Appellate Court: _____

Result: _____ Date: _____

6. A current verified copy of the Defendant's criminal history record is attached, and the criminal history record check was conducted no more than 20 days prior to the filing of this Petition. ☐ Yes ☐ No (If it is not attached to this Petition, a copy of the criminal history record must be filed with the Court no later than 10 days after the filing of this Petition)

7. Does Defendant still owe restitution? ☐ Yes. ☐ No.

8. The Petitioner further shows the Court that the harm to Defendant's privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records. Explain:

9. The Petition is for a conviction eligible for sealing under § 24-72-708 C.R.S

10. The case I am requesting be sealed contains at least one charge that is not a class 1 misdemeanor traffic offense, class 2 misdemeanor traffic offense, class A traffic infraction, or class B traffic infraction.

11. I understand sealing is not available for records pertaining to a deferred judgement and sentence concerning the holder of a commercial driver's license or the operator of a commercial motor vehicle pursuant to § 42-2-402, C.R.S., or an offense for which the factual basis involved unlawful sexual behavior pursuant to § 16-22-102(9), C.R.S.

12. If, subsequent to the conviction in the case I am requesting be sealed, I have been convicted of a single offense that was not a felony and did not involve domestic violence as defined in § 18-6-

800.3(1), unlawful sexual behavior as defined in § 16-22-102(9), or child abuse as defined in § 18-6-401, I understand sealing is not available for records pertaining to a municipal assault or battery offense, as defined in § 18-6-800.3(1) or any other municipal violation in which the underlying factual basis involves domestic violence as defined in § 18-6-800.3(1).

- 13.** Petitioner requests the Court to enter an order sealing the municipal conviction record pertaining to the Defendant, pursuant to § 24-72-703 and § 24-72-708 C.R.S., and to seal this action.

14. Certificate of Service

I certify that on *(enter date)* _____, I gave a copy of this document to the prosecuting attorney by: *(select at least one)*

☐ Efiling *(where available)*

☐ Email or Fax to: _____

☐ Hand Delivery, to: *(name, place)* ☐ Regular Mail, addressed to: *(name, full address)*

1) _____

2) _____

15. Signature

Petitioner (Defendant) Signature

Dated

Lawyer Signature *(if any)*

Dated

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Order to Seal Municipal Conviction Records	

1. Background

Defendant's Full Name Maria-Alejandra O'Shaughnessy-Whitfield Date of Birth 1961-12-31

Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B

City: Colorado Springs State: _____ Zip Code: 80921-2214

The Court has read the Petition to Seal Municipal Conviction Records, examined the record, reviewed the current copy of the Defendant's criminal history record and, if applicable, considered any evidence presented at a hearing and any responses filed in opposition to the Petition. The Court hereby finds that it is appropriate to grant the Petition pursuant to C.R.S. § 24-72-708.

2. Findings

The Court finds that the harm to the privacy of the Defendant or the dangers or unwarranted, adverse consequences to the Defendant outweigh the public interest in retaining the records.

3. Decision

1) Records Sealed

The Court orders the criminal records information specifically relating to and contained in:

Municipal Court case number: 2014M0011882-SUPPLEMENTAL

Law Enforcement Agency case number: _____

be sealed immediately, except for basic identifying information, and that upon inquiry in the matter, the person in interest and criminal justice agencies to which this Order is directed may properly reply that public conviction records do not exist with respect to the defendant. This order applies to public and private custodians of the record.

2) Case Sealed

The Court directs the above order to the Clerk of Court to seal the criminal case(s) listed above. The Court also directs the Clerk of Court to seal this civil action *(if any)*.

3) Service

The Court’s clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and to every records custodian listed in the Petition.

Note to Defendant:

The CBI charges a fee before its records are sealed.
Contact the CBI to pay that fee and for more information

So Ordered

☐ Judge ☐ Magistrate

Dated